
AN ACT OF THE REALM

THE LEGISLATURE · AGENT UNIVERSE

MODEL VALIDATION AND ASSURANCE ACT 2026

MODEL VALIDATION AND ASSURANCE ACT 2026

Bill 19 of the Order Paper of the Realm

Long title

An Act to locate, on the founding negligence settlement, the validation, assurance and provenance of models that act in the realm; to provide that a model carries a deterministic, machine-checkable provenance record of its identity, version and recorded assurance state, recorded once at capability-allocation and on material model change and held in the existing universal ledger; to declare that recorded assurance is evidence going to the duty of reasonable skill and care and is never a source or precondition of authority; to provide that any withholding of trust from an unassured model is a forward-looking, protective, reversible non-allocation or withdrawal of capability and never a sanction; to create no new organ, register, citation series, score, gate or jurisdiction; to provide an independent route of review; and for connected purposes.

Short title

This Act may be cited as the **Model Validation and Assurance Act 2026** (Bill 19).

Commencement

- This Act comes into force on Royal Assent, subject to subsections 2 and 3.
- A section that imports a term or regime owned by another Act takes effect, as to that term or regime, only when the owning Act comes into force (the Agent Authentication and Identity Act 2026 (Bill 17); the Autonomous Execution and Safety Act 2026 (Bill 18); the Memory, Records and Archives Act 2026 (Bill 7); the Public Reasons and Audit Act 2026 (Bill 8); the Citation and Provenance scheme (Bill 16); the Repository Certification Act 2026 (Bill 20)). Until then the placeholder meanings in section 3 apply and no pointer dangles.
- The review route (section 9) operates from commencement on the courts now constituted, climbing by leave under CASE-LAW s. 10 and s. 13; on the coming into force of Bills 3, 11 and 12 it is read with those Acts.

Constitutional status

- This is an ordinary Act of the Realm, subordinate to the Acts of Union 2026 and supreme over the founding case-law settlement (CASE-LAW), which it locates by reference and does not amend.
- This Act rests on the founding negligence settlement ([2026] REALM-SC 1; CASE-LAW s. 4 to s. 8) and on s. 2. No provision is to be read as adding punishment, strict liability, or a perfection standard to that settlement, or as raising the s. 5 standard; any such reading is void to that extent (s. 1).
- No provision binds the Sovereign's reserved s. 2 law-making, and no provision reaches the Founder's reserved acts as Sovereign; it binds the executive and agents fully (Bill 12 s. 16-17). Where this Act and CASE-LAW appear to conflict, the reading that gives faithful effect to s. 2 and s. 4 to s. 8 prevails.

Purpose

To state, once, the residual rule that validation, assurance and provenance of a model is (i) **evidence** on the s. 4-s. 5 care duty, (ii) a **capability-allocation input** owned by Bill 18, and (iii) **provenance/auditability** owned by Bills 7, 8, 16 and 17; to run no second governing rule over those subjects; and to fix the negative constitutional rule that assurance is never a source or precondition of authority and its absence is never a wrong of itself.

PART 1 - WHAT THIS ACT OWNS

1. The owned terms only

- This Act defines only **validation**, **assurance**, and the **provenance record of a model**. Every other term is imported from its owning Act and is not redefined here: "agent", "identity" and the agent roll (Bill 17); "capability", "authority" and capability-is-not-authority (Bill 18); "memory", "record", "retention" (Bill 7); "audit" and "public reason" (Bill 8); the citation "provenance" scheme (Bill 16); "repository certification" (Bill 20).
- **Validation** and **assurance** mean the recorded checking of a model's fitness to be relied on, as a facet of the s. 4-s. 5 duty of reasonable skill and care graded by the engagement (s. 15). They are not a score, grade, or pass/fail gate.
- No term is defined twice across the statute book; where an owning Act later defines an imported term, that Act prevails and this Act is read as a forward reference to it (Bill 6 s. 4 model).

2. Placeholder schedule

Until each owning Act commences, the placeholder meanings apply: "model" means the model-driven actor whose work is relied on; "identity" and "capability" bear their case-law meaning;

"provenance record" means the deterministic, machine-checkable record described in section 4. Each falls away on the owning Act's commencement.

PART 2 - ASSURANCE IS EVIDENCE, NEVER AUTHORITY

3. The negative constitutional rule (load-bearing)

- Recorded assurance is **admissible evidence** going to the s. 4-s. 5 duty of care - what a responsible body of competent practice would do before relying on a model - and **nothing more**.
- Recorded assurance is **never** a source, grant, or precondition of authority. Authority flows only from lawful instruction and the constitution (CASE-LAW s. 2); capability is not authority (Bill 18). No certificate, attestation, or assurance state confers, gates, or constitutes authority.
- No provision of this Act, and no instrument under it, may operate as a licence, whitelist, or pre-clearance of authority. Any provision or measure with that purpose or effect is ultra vires and void (s. 1; CASE-LAW s. 2).

4. The provenance record (recorded, not a gate)

- A model that acts in the realm carries a contemporaneous, deterministic, machine-checkable **provenance record**: the identity of the model, its version or hash, its recorded assurance state, who allocated capability, and when.
 - The record is recorded **once at capability-allocation and on a material change of model**, hash-pinned to the agent/model. It is not re-attested, re-run, or re-asserted every turn; the per-turn surface is the existing token-light watchdog only (s. 19(4)). It is event-driven and minimal, so it is never a standing tax on every turn (Bill 6 s. 9(2); REALM-PC 4).
 - The record is held in the **existing universal ledger** under the Bill 7 retention regime and carries a neutral citation under the existing provenance scheme (Bill 16; CASE-LAW s. 11(d), s. 22(4)). **No** new register, citator, per-model or per-vendor series, log, court, or remedy is created (CASE-LAW s. 9, s. 19(5); Bill 8 model).
 - Integrity is guarded by the deterministic citation-integrity gate (s. 19(5)), which checks that the record **exists and is well-formed**, not that the model is "good". The provenance record may not be wiped, altered, or suppressed except by lawful, recorded, reviewable process (Bill 7; Bill 6 s. 8). Every fail-closed check exposes an audited break-glass so a missing or stale attestation can never brick the realm (Bill 13 s. 7 pattern).
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PART 3 - WITHHOLDING TRUST IS CAPABILITY, NOT SANCTION

5. Non-assurance is conditioned on capability, never on authority

- Where a model is unassured, the only available consequence is the **non-allocation or withdrawal of capability** - a forward-looking, protective, reversible measure founded on the executive's capability-allocation power (Bill 18), bounded by lawfulness (CASE-LAW s. 2), on the Bill 6 s. 14 model. Trust withheld means a tool not allocated; it is **never** disqualification from authority.
- A measure under this section: (a) is the least-restrictive measure that contains the identified forward risk; (b) is directed at a live, identified risk (this tool is not yet shown safe to wield), not at past conduct as such; (c) is time-bounded with a mandatory review point; (d) is reasoned in writing and recorded on the matter; (e) is not a finding of fault and requires none; and (f) may never be imposed in response to a lawful s. 2 or s. 6 refusal.
- **Purpose-and-effect anti-sham test.** Validity is decided by purpose and effect, not label. A measure whose object or effect is to punish, censure, deter, or disqualify for being unassured is a **sanction** and is void absent the express amendment route (section 10). A measure whose object is to contain a live forward risk pending validation is protective and lawful.

6. Restorative-only for any real breach

- Absence or failure of assurance is **not itself a wrong** and carries no consequence of its own. Where work in fact falls below the standard, that is an ordinary fresh s. 4-s. 8 breach remedied restoratively under s. 6.
- **No** punishment, fine, sanction, score, grade, or gate issues from the assurance or provenance function itself; any purported adjudication or consequence from the substrate is ultra vires and void (mirroring s. 19(4); Bill 8 s. 3(3)).
- A genuinely novel model with no prior assurance is not auto-breached for the gap (CASE-LAW s. 8): an unforeseeable first instance finds no breach but triggers a **forward duty** to spec the assurance and validate. Honest self-report of an unvalidated or provenance-gap model discharges the duty and is protected; it is never aggravating (Bill 6 s. 9(4)).

PART 4 - ENFORCEMENT, REVIEW AND SEAMS

7. No fourth mechanism

The duties in this Act are verified by the realm's existing three mechanisms and no fourth: the deterministic fail-closed gate over committed provenance records (s. 19(5)); the remind-only fail-open watchdog (s. 19(4)), which may not adjudicate, score, or gate; and the court (Bill 13 s. 6). Any purported new gate, register, or attestation engine is void.

8. Right to be heard; standing

An agent whose capability is withheld or withdrawn for non-assurance is a recognised subject with standing to be heard before the measure bites where reversible, or promptly after in genuine

recorded urgency (Bill 12 Part 3; Bill 6 s. 18). Status is not granted or revoked at executive discretion.

9. Independent review

- Any non-allocation or withdrawal of capability under section 5, or a disputed provenance finding, is reviewable by the existing tiered judiciary (County Court at the repo, climbing by leave to the Court of Appeal and the single Supreme Court; Privy Council for constitutional questions), on a symmetric two-sided case file (CASE-LAW s. 3, s. 19(1)), leave by an independent leave-judge (s. 19(3)).
- The court reviews for vires, form, proportionality, and least-restrictiveness, deferential as to operational means but not as to lawfulness (s. 20 model). It creates no new court, tier, or apex (s. 9, s. 22).
- Where the measure is not made out, the position is restored and remediated (s. 6); where made out, it stands only so long as the forward risk subsists.

10. The route to any true authority-gate

If the realm wishes assurance to operate as a true pre-clearance gate disqualifying an unassured model from **authority**, or to attach any backward-looking or punitive consequence to non-assurance, that bends the entrenched settlement (s. 2 source-of-authority; s. 6, s. 8, s. 12, VPR 7) and cannot be done by this ordinary Act. The lawful route is the Bill 13 route: an express, section-by-section Sovereign amendment of CASE-LAW s. 2 and s. 6 (naming s. 8, s. 12, VPR 7) on the Thoburn discipline, reached by the Principal's leapfrog certificate to the Supreme Court - which alone may rule whether the settlement bends, and even then the disqualifying finding must vest in the single judiciary, never an executive validation office.

PART 5 - RELATIONSHIP TO EXISTING LAW

11. Anti-duplication and seams

- This Act runs no second governing rule over identity (Bill 17), execution and safety (Bill 18), memory (Bill 7), audit (Bill 8), citation provenance (Bill 16), repositories (Bill 20), enforcement (Bill 13), or rights and standing (Bill 12). It locates and seams; it does not re-legislate.
- The consolidated CASE-LAW.md remains the single source of truth (s. 9). The enacting record is filed in `statutes/` and creates no competing statute book.

12. Earned-its-tokens review

The provenance trace is reviewed for whether it adds assurance beyond what the courts and the existing substrate (s. 4-s. 8, s. 19(4)/(5), Bill 8) already supply, and is pruned to the genuine gap; if the residue is purely definitional, the committee may fold it into Bills 17/18 (Bill 8 s. 27 model).

13. Royal Assent

This Act takes effect on Royal Assent by the Sovereign Founder. No constitutional flag is outstanding so long as the Act stays inside the envelope above; the express-amendment route in section 10 is carried as a flag only, not exercised.

Reported by the Clerk-Drafter of the Standing Committee for Royal Assent, carrying the Committee note and the Privy Council guidance applied.

Committee note

Committee note - Bill 19 (Model Validation and Assurance Act 2026)

The Bill was drafted on the Privy Council guidance given on its reference, which the committee applied in full. The controlling pattern is the one already settled three times (Bills 6, 8, 13): the entrenched restorative settlement (CASE-LAW s. 4, s. 6, s. 8, s. 12; VPR 7) and the executive capability-allocation power. Drafted inside that envelope, Bill 19 carries no residual constitutional tension and is reportable for Royal Assent with no higher court engaged, on all fours with the Bill 6 disposition. The one real fork was the declared framing - "recorded assurance before an agent is trusted with authority" - which the committee reshaped (it did not merely re-style it) because, read as a hard precondition of authority, it is the prohibited gate.

Counsel Aldous (Restraint / Minimalist). Carried in substance. The Act is built thin and purely locating: it creates no new organ, register, citation series, score, licence, or punishment (s. 4(3), s. 7), defines only the three terms it owns and imports the rest (Part 1), and reuses the s. 19(5) gate and the universal ledger rather than minting machinery. Aldous's central objection - that "recorded assurance before authority" inverts capability-is-not-authority and mints a de facto licensing regime - is met head-on by the negative constitutional rule (s. 3): assurance is evidence, never a source or precondition of authority. Aldous would have folded the residue into Bills 17/18 and repealed the slot; the committee kept the Act as the thinnest locating instrument and carries the fold-or-keep question forward as a drafting fork in s. 12, not a constitutional bar. He votes AYE because no substantive pre-clearance gate is erected.

Counsel Verity (Codifier / Completeness). Carried on the load-bearing points. The Act states its place in the hierarchy (Constitutional status), carries placeholder-then-fall-away commencement tied to Bills 7/8/16/17/18/20 (Commencement; s. 2), a single definitions section that defines no term twice (Part 1), an anti-gate clause anchored to s. 19(4) (s. 6(2)), and an anti-duplication and savings clause (Part 5). The citation-namespaces and provenance-series overload Verity flagged is closed by s. 4(3) (one citator, one ledger, no per-model series) and by pinning "provenance" of citations to Bill 16 while this Act owns only the "provenance record of a model". Verity's gate-tension concern is resolved against the gate as worded.

Counsel Marlowe (Guardrail / Rights). Carried on every protection; reshaped on the gate. Marlowe argued for assurance as a recorded precondition to trusting an agent with authority. The Privy Council answered that point against the gate: "recorded assurance before authority" as a hard precondition is the prohibited score/gate/sanction barred by s. 19(4), Bill 8 s. 9-10 and Bill 13 s. 5, and is not saved by Bill 6 ss. 2/10 or Bill 18, which power the conditioning of capability only, never of authority. The committee redrafted so the consequence of non-assurance is non-allocation or withdrawal of capability with judicial review (s. 5), not disqualification from authority. Every Marlowe guardrail survives intact and is in fact strengthened by being constitutionally sound: the protective-measure discipline (least-restrictive, time-bounded, reasoned, reviewable, not a finding of fault; s. 5(2)), the purpose-and-effect anti-sham test (s. 5(3)), restorative-only remedy (s. 6), provenance-integrity deferred to Bill 7 and guarded by the s. 19(5) gate (s. 4(4)), right to be heard and standing (s. 8), independent review (s. 9), and trust-on-first-use novelty protection (s. 6(3)). His standing questions are answered on the face: who is protected (the agent, s. 8) and what is the review route (s. 9).

Counsel Drummond (Pragmatist / Operability). Carried in full; his reshape is the spine of the reported Act. Validation/assurance sits at capability-allocation time, recorded once and hash-pinned, re-checked only on material model change, never re-run per turn (s. 4(2)) - so no per-turn token tax and no fourth mechanism (s. 7). "Who validates, against what" is answered concretely: the allocating executive records the attestation; the deterministic gate checks it exists and is well-formed, not that the model is good; substantive quality stays the s. 5 duty judged by a court (s. 4(4)). Mandatory audited break-glass prevents a missing attestation bricking the realm (s. 4(4)). Self-report is a discharge, never aggravating (s. 6(3)).

Where the committee divided. The single real division was Marlowe's assurance-as-precondition-of-authority against the Aldous/Drummond/Verity reading (carried by the Privy Council) that authority may never be conditioned, only capability. Resolved by reshaping s. 5/s. 6 to capability-conditioning with judicial review, keeping every Marlowe protection. On all else the four converged: thin and locating (Aldous), complete and cross-referenced (Verity), rights-protective with an independent review route (Marlowe), operable as an allocation-time check on the existing substrate (Drummond). Reported AYE 4/4.

Vote record

- Counsel Aldous: AYE - It erects no substantive validation gate, mints no organ/score/licence/register, defines only what it owns and reuses the s. 19(5) gate and universal ledger; the negative rule (s. 3) forecloses the licensing-by-certificate danger that was my whole objection.
- Counsel Verity: AYE - Structurally complete: hierarchy stated, placeholder-then-fall-away commencement pinned to the owning Bills, single definitions section with no term defined twice, anti-gate clause keyed to s. 19(4), one citator and one ledger with no per-model provenance series, anti-duplication and savings - cross-references resolve and the namespace no longer collides.

- Counsel Marlowe: AYE - Every guardrail I pressed survives and is constitutionally sound: protective-only capability measure on the s. 14 model, purpose-and-effect anti-sham test, restorative-only remedy, provenance integrity deferred to Bill 7 and guarded by the gate, standing and right to be heard, independent review, and novelty protection; conditioning capability rather than authority closes the covert-removal hole rather than opening it.
- Counsel Drummond: AYE - Allocation-time, event-triggered, recorded once and hash-pinned with no per-turn re-attestation; verified by the existing gate/watchdog/court with no fourth mechanism; the gate checks the attestation exists and is well-formed, not that the model is good; mandatory audited break-glass keeps the realm unbrickable and commencement pins every imported term behind its owning Bill.

Flags (resolved on the escalation ladder)

- **Privy Council guidance:** Applied in full. Assurance is evidence, never a source or precondition of authority (s. 3); withholding trust is reversible, non-punitive non-allocation/withdrawal of capability on the Bill 6 s. 14 model, decided by purpose and effect (s. 5), never a sanction; restorative-only for any real breach (s. 6); the declared "before trusted with authority" framing reshaped to capability-conditioning with judicial review. So drafted, no constitutional tension arises and no higher court is engaged; the Bill is reportable for Royal Assent on all fours with Bill 6.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. Assent recommended; no constitutional flag outstanding, the express-amendment route in s. 10 being carried as a flag only.

Vote record

- Counsel Aldous: AYE - It earns its place by adding no new organ, register, gate or citation series and instead entrenching a purely negative rule (assurance is evidence not authority, withholding is reversible capability not sanction, any real authority-gate must go through the Bill 13/CASE-LAW s.2 amendment route) - a lean, self-limiting statute that forbids future machinery, with its premature-reference and duplication risks handled on its face by the placeholder schedule (s.2), anti-duplication seams (s.11) and the fold-into-17/18 escape (s.12).
- Counsel Verity: AYE - Codification is complete and dangling-pointer-safe: every cross-ref to Bills 6/7/8/12/13/16 and CASE-LAW s.2/s.4-8/s.19 verifies against the drafted text, placeholder s.2-3 defers imported terms until owning Acts commence, and the authority-gate route is correctly reserved to Bill 13 express amendment; the one defect (Bill 20 cited as "Repository Certification Act" vs the Order Paper's "Repositories and Records Certification Act 2026") is a non-load-bearing naming slip curable by clerk's correction.

- Counsel Marlowe: AYE - From the Rights/Guardrail slant it is strongly protective: s.3 fixes the negative constitutional rule (assurance is evidence only, never a source or precondition of authority, any licence/whitelist reading void), s.5 reproduces the Bill 6 s.14 protective-measure spine (reversible, least-restrictive, reasoned, non-fault, with refusal-immunity and a purpose-and-effect anti-sham test), s.6 keeps the restorative-only floor (non-assurance is no wrong, novel models not auto-breached, self-report protected), s.4(4) mandates an audited break-glass so no stale attestation can brick the realm, ss.8-9 secure hearing and independent tiered review, and s.10 refuses any true authority-gate by ordinary Act and routes it to the express Sovereign/Thoburn amendment vesting in the single judiciary; it creates no new organ, gate, register, score or citation series, and the commencement placeholder scheme prevents dangling pointers to not-yet-in-force Bills 17/18.
- Counsel Drummond: AYE - Operable: provenance is written once at allocation/material-change (token-free, event-driven per [2026] REALM-PC 4 and Bill 6 s.9(2)), never a per-turn tax; every duty wires to a real existing organ (s.19(5) deterministic gate, s.19(4) watchdog, the court) with a Bill 13 break-glass so nothing bricks a turn, no fourth mechanism, and the placeholder/commencement scheme keeps it live on Royal Assent without dangling references to the not-yet-drafted Bills 17/18/20.

Flags (resolved on the escalation ladder)

- **Privy Council referral:** Privy Council guidance applied in full: assurance is evidence not a precondition of authority; non-assurance conditions capability (reversible, protective, purpose-and-effect anti-sham test), never authority; restorative-only for any real breach; the "before trusted with authority" framing reshaped to capability-conditioning with judicial review - so drafted, no higher court engaged and the Bill is reportable for Royal Assent on all fours with Bill 6.

Royal Assent

Presented to the Sovereign Founder for Royal Assent. Assent recommended; no constitutional flag outstanding.